



CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

FORM CV-03
FILED BY THE DEFENDANT
REV. 08/2026

IN THE COUNTY / CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR CLEARWATER COUNTY

ANSWER AND AFFIRMATIVE DEFENSES

The defendant's written response to a complaint

PLAINTIFF 	CASE NUMBER (UCN)
VS.	Format: 26-CF-000123 (YY - TYPE - NUMBER)
DEFENDANT 	DIVISION
Full name of party	JUDGE / HEARING OFFICER
	CF felony MM misdem. CT crim. traffic TR traffic CC civil SC small claims

HOW TO USE THIS FORM

Respond to every numbered paragraph of the complaint. Anything you do not deny is treated as ADMITTED. Affirmative defenses are reasons you win even if the plaintiff's facts are true - if you do not raise them here, you lose them.

RESPONDING PARTY

DEFENDANT NAME 	DATE SERVED WITH COMPLAINT MM/DD/YY	ANSWER DUE DATE MM/DD/YY
REPRESENTED BY 	BAR NO. 	CONTACT HANDLE

PART I - RESPONSE TO ALLEGATIONS

For each numbered paragraph of the complaint, write ADMITTED, DENIED, or WITHOUT KNOWLEDGE. You may group consecutive paragraphs that get the same response.

PARAGRAPH NO(S).	RESPONSE	EXPLANATION (OPTIONAL)

PART II - AFFIRMATIVE DEFENSES

DEFENSES RAISED

- ☐ Statute of limitations has expired
- ☐ Assumption of risk
- ☐ Payment or accord and satisfaction
- ☐ Lack of jurisdiction over this defendant
- ☐ Insufficient service of process
- ☐ Sovereign immunity (government defendant)
- ☐ Officer acted within the scope of duty
- ☐ Consent of the plaintiff
- ☐ Comparative negligence of the plaintiff
- ☐ Failure to mitigate damages
- ☐ Release or prior settlement
- ☐ Improper venue
- ☐ Failure to state a cause of action
- ☐ Qualified immunity (individual officer)
- ☐ Notice of Claim requirement not satisfied
- ☐ Act of a third party

STATEMENT OF EACH AFFIRMATIVE DEFENSE

NUMBER EACH DEFENSE AND EXPLAIN THE FACTUAL BASIS

PART III - COUNTERCLAIM (OPTIONAL)

If you believe the plaintiff owes YOU money arising out of the same events, state your counterclaim here. A separate filing fee applies.

COUNTERCLAIM

STATE THE FACTS AND THE AMOUNT YOU ARE CLAIMING

COUNTERCLAIM AMOUNT

\$

COUNTERCLAIM FILING FEE

\$

JURY TRIAL DEMANDED

THIRD PARTY NAMED

CERTIFICATE OF SERVICE: I certify a true copy of this Answer was furnished to the plaintiff or plaintiff's counsel by the method and on the date stated below.

METHOD OF SERVICE

SERVED ON

DATE OF SERVICE

MM/DD/YY

DEFENDANT OR COUNSEL

PRINTED NAME

DATE

CLERK OF COURT

Filed

PRINTED NAME

DATE